

ENTERPRISE SOFTWARE LICENSE AGREEMENT

Effective Date: June 1, 2026

Contract No: ESL-2026-0042

BETWEEN:

CloudSync Inc., a Delaware corporation ("Licensor")

AND:

The entity identified in the Order Form ("Licensee")

SECTION 1: DEFINITIONS

- 1.1 "Software" means the CloudSync Enterprise platform, including all modules, APIs, SDKs, and documentation provided under this Agreement.
- 1.2 "Authorized User" means an individual employee or contractor of Licensee who is authorized to use the Software under the license grant in Section 2.
- 1.3 "Subscription Term" means the period specified in the Order Form, typically twelve (12) months from the Effective Date.
- 1.4 "Confidential Information" means all non-public information disclosed by either party, including but not limited to trade secrets, source code, customer data, and business strategies.
- 1.5 "GDPR" means the General Data Protection Regulation (EU) 2016/679.

SECTION 2: LICENSE GRANT

2.1 Subject to the terms of this Agreement, Licensor grants Licensee a non-exclusive, non-transferable, revocable license to:

- (a) Install and use the Software on Licensee's infrastructure;
- (b) Make the Software available to Authorized Users;
- (c) Use the Software for Licensee's internal business purposes only.

2.2 The license is limited to the number of Authorized Users specified in the Order Form. Additional users require a separate order.

2.3 Licensee may not sublicense, rent, lease, or distribute the Software to any third party without prior written consent from Licensor.

SECTION 3: RESTRICTIONS

3.1 Licensee shall not:

- (a) Reverse engineer, decompile, or disassemble the Software;
- (b) Modify, adapt, or create derivative works of the Software;
- (c) Remove or alter any proprietary notices or labels;
- (d) Use the Software to provide services to third parties (SaaS);
- (e) Exceed the concurrent user limits specified in the Order Form;
- (f) Use the Software in violation of applicable laws or regulations.

3.2 Licensee shall maintain accurate records of Authorized Users and provide such records to Licensor upon reasonable request for audit purposes.

SECTION 4: WARRANTIES AND LIABILITY

4.1 Warranty: Licensor warrants that the Software will perform substantially in accordance with the documentation for a period of ninety (90) days from the Effective Date.

4.2 LIMITATION OF LIABILITY: IN NO EVENT SHALL EITHER PARTY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT EXCEED THE GREATER OF: (A) THE TOTAL AMOUNTS PAID BY LICENSEE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR (B) ONE HUNDRED THOUSAND DOLLARS (\$100,000).

4.3 Neither party shall be liable for indirect, incidental, special, consequential, or punitive damages, including lost profits, data loss, or business interruption, regardless of the cause of action.

4.4 The limitations in Sections 4.2 and 4.3 shall not apply to:

- (a) Breach of confidentiality obligations;
- (b) Infringement of intellectual property rights;
- (c) Gross negligence or willful misconduct.

SECTION 5: TERM AND TERMINATION

5.1 This Agreement commences on the Effective Date and continues for the Subscription Term, unless earlier terminated as provided herein.

5.2 Either party may terminate this Agreement:

- (a) For cause upon thirty (30) days written notice of a material breach that remains uncured at the end of such notice period;
- (b) Immediately if the other party becomes insolvent, files for bankruptcy, or makes an assignment for the benefit of creditors;
- (c) Upon ninety (90) days written notice for convenience, provided Licensee has paid all fees due through the end of the notice period.

5.3 Upon termination:

- (a) All licenses granted hereunder shall immediately cease;
- (b) Licensee shall cease all use of the Software and destroy all copies;
- (c) Each party shall return or destroy all Confidential Information.

5.4 Sections 4, 6, 7, 8, and 9 shall survive termination.

SECTION 6: INTELLECTUAL PROPERTY

- 6.1 The Software and all intellectual property rights therein are and shall remain the exclusive property of Licensor. This Agreement does not grant Licensee any ownership rights in the Software.
- 6.2 Licensee retains all rights in its data. Licensor shall not use Licensee's data for any purpose other than providing the Services.
- 6.3 Any feedback or suggestions provided by Licensee regarding the Software may be used by Licensor without restriction or compensation.

SECTION 7: INDEMNIFICATION

- 7.1 Licensors shall defend, indemnify, and hold harmless Licensee from and against any third-party claim that the Software infringes any patent, copyright, or trade secret of such third party.
- 7.2 Licensee shall defend, indemnify, and hold harmless Licensors from and against any third-party claim arising from:
- (a) Licensee's use of the Software in violation of this Agreement;
 - (b) Licensee's data or content processed by the Software;
 - (c) Licensee's violation of applicable laws.
- 7.3 The indemnified party shall: (a) promptly notify the indemnifying party of the claim; (b) provide reasonable cooperation; and (c) grant sole control of the defense to the indemnifying party.

SECTION 8: DATA PROTECTION

8.1 Both parties shall comply with all applicable data protection laws, including but not limited to GDPR, CCPA, and HIPAA where applicable.

8.2 For purposes of GDPR:

- (a) Licensor acts as a Data Processor;
- (b) Licensee acts as a Data Controller;
- (c) Licensor shall process personal data only on documented instructions from Licensee and in accordance with the Data Processing Agreement.

8.3 Licensor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including:

- (a) Encryption of personal data in transit and at rest;
- (b) Regular testing and evaluation of security measures;
- (c) Incident response procedures for data breaches;
- (d) Annual third-party security audits.

8.4 In the event of a personal data breach, Licensor shall notify Licensee without undue delay and no later than seventy-two (72) hours after becoming aware of the breach.

SECTION 9: MISCELLANEOUS

- 9.1 Governing Law: This Agreement shall be governed by the laws of the State of Delaware, without regard to conflict of laws principles.
- 9.2 Dispute Resolution: Any dispute arising under this Agreement shall be resolved through binding arbitration under the rules of the American Arbitration Association in San Francisco, California.
- 9.3 Entire Agreement: This Agreement, together with all Order Forms and exhibits, constitutes the entire agreement between the parties.
- 9.4 Amendment: No modification of this Agreement shall be effective unless in writing and signed by authorized representatives of both parties.
- 9.5 Assignment: Neither party may assign this Agreement without the prior written consent of the other party, except in connection with a merger or acquisition of substantially all of its assets.
- 9.6 Severability: If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force.
- 9.7 Notices: All notices shall be in writing and sent to the addresses specified in the Order Form.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CLOUDSYNC INC.

By: _____
Name: John Smith
Title: Chief Executive Officer
Date: June 1, 2026

LICENSEE:

By: _____
Name: _____
Title: _____
Date: _____